

**BEFORE THE BEHAVIORAL HEALTH PROFESSIONALS BOARD
OF THE STATE OF IOWA**

RE: Mental Health Counselor License of LEAH O'BRIEN License No. 107086 RESPONDENT	CASE NO.: 24-0219 COMBINED STATEMENT OF CHARGES, SETTLEMENT AGREEMENT, AND FINAL ORDER
--	--

COMES NOW the Iowa Board of Behavioral Health Professionals ("Board") and Leah O'Brien ("Respondent"), pursuant to Iowa Code §§ 17A.10(2), 272C.3(4), and chapter 154D, enter into this Settlement Agreement and Final Order ("Settlement Agreement").

A. BACKGROUND

- 1. Iowa License.** Respondent was issued an Iowa mental health counselor license no. 107086 on April 14, 2021. Respondent's license is active and next expires on September 30, 2026.
- 2. Practice Setting.** Respondent is an Iowa-licensed mental health counselor who practiced under a Nebraska independent mental health practitioner license in Omaha, Nebraska and under Iowa mental health counselor license no. 107086 in Council Bluffs, Iowa during the time-period relevant to these allegations.
- 3. Jurisdiction.** The Board has jurisdiction in this matter pursuant to Iowa Code chapters 17A, 147, 154D, and 272C as well as 645 Iowa Administrative Code chapter 33.
- 4. Allegations.** Respondent was employed in private practice in Omaha, Nebraska and provided mental health services to police department personnel in Omaha and Council Bluffs, Iowa. She provided individual therapy to a Nebraska client from approximately May 21, 2021 to September 29, 2022. In June 2022, Respondent sent the client flirtatious texts and, on a few occasions, sent images of herself in body building competition attire. She met the client for drinks,

once, in July 2022. Respondent told the client confidential information about other police department personnel to whom she was providing mental health services. On June 12, 2024, the Nebraska Department of Health and Human Services, Division of Public Health accepted an Agreed Settlement between Respondent and the State of Nebraska in which Respondent's Nebraska license to practice was placed on a 12-month probation, with an initial 90-day suspension to run concurrently with the probation, with specified terms, including supervised practice; Respondent's Nebraska license was automatically reinstated to active status at the conclusion of the 90-day suspension period. Respondent was also ordered to complete a PRoBE ethics course and to pay a civil penalty of \$18,000. Respondent promptly paid the civil penalty and completed the ProBE ethics course in July 2024. Respondent's period of probation in Nebraska will end on June 22, 2025. Respondent denies any issues with Iowa clients, and Respondent reported voluntarily stopping practice in Iowa when she was ordered to stop practice in Nebraska.

B. STATEMENT OF CHARGES

5. **Count I:** Respondent is charged with unethical conduct for making suggestive, lewd, lascivious, or improper remarks or advances to a client in violation of Iowa Administrative Code rule 645-33.2(29)(b).

C. SETTLEMENT AGREEMENT

6. Respondent acknowledges that the allegations in the Statement of Charges, if proven in a contested case hearing, would constitute grounds for the discipline agreed to in this Settlement Agreement. Respondent neither admits nor denies the allegations set forth in Section A.4 above or in the Statement of Charges in Section B.5 above.

7. To resolve this matter without proceeding to hearing, Respondent agrees to the following conditions:

a. *Probation and Practice Monitoring.* Respondent's license to practice mental health counseling in the state of Iowa is placed on **PROBATION** for a period of at least **SIX MONTHS** from the date this Settlement Agreement is approved by the Board. Respondent's probationary term is subject to the following conditions:

- i. *Practice Monitor.* Respondent shall submit the name and credentials of a proposed practice monitor no later than **30 DAYS** following the date this Settlement Agreement is approved by the Board. The proposed practice monitor must be a licensed mental health provider in Iowa with no disciplinary history and have at least 5 years of experience. The practice monitor may not work at the same organization/business as Respondent. After receiving approval from the Board's Executive, who may consult with one or more Board members when considering whether to approve the proposed practice monitor, Respondent shall meet with the practice monitor to discuss this Settlement Agreement and the circumstances that led to discipline. Respondent and practice monitor shall also discuss establishing and maintaining boundaries with clients and other relevant topics. Following this initial meeting with the practice monitor, Respondent shall submit a narrative report to the Board describing the conversation, the best practices discussed, and Respondent's plans to implement best practices moving forward. Respondent shall submit this report no later than **90 DAYS** following the date this Settlement Agreement is approved by the Board.
- ii. After the initial meeting with the practice monitor, Respondent shall meet with the practice monitor at least two times during the remainder of the

probationary period; meetings shall be at least four weeks apart. Respondent and practice monitor shall discuss Respondent's progress on implementing the best practices previously discussed and any barriers or challenges that have arisen. During these meetings, the practice monitor shall also review a random sample of Respondent's progress notes for client appointments and communications with clients during each meeting to identify any concerns. The monitor will discuss any concerns with Respondent (and will report to the Board if warranted). The practice monitor may require Respondent to complete readings or other assignments relevant to the facts underlying this case or other practice concerns ahead of scheduled meetings. In the event of a report to the Board from Respondent's practice monitor indicating concerns with Respondent's practice or recommending future monitoring or practice restrictions, the Board may open a new complaint.

- iii. Respondent shall ensure the practice monitor submits a written report to the Board for each required meeting with the practice monitor regarding the clinical practice review and confirming Respondent's compliance with this Settlement Agreement. The practice monitor's reports are due September 1, 2025 and December 1, 2025.
- iv. Respondent shall submit a written report to the Board for each required meeting with the practice monitor (other than the initial meeting, for which a specific written report, described above, is required) providing a short overview of the work done with her practice monitor. Reports are due September 1, 2025 and December 1, 2025.

- v. All reports made to the Board by Respondent and the practice monitor are confidential and not part of this Settlement Agreement.
- vi. Respondent shall be responsible for any costs associated with the practice monitor.
- vii. Respondent shall appear before the Board upon reasonable notice.
- viii. Promptly following the Board's approval of this Settlement Agreement, Respondent shall notify all current employers of this Settlement Agreement. Respondent will notify any future professional services employers of this Settlement Agreement immediately upon hiring.
- ix. Termination of probation is subject to approval of the Board upon the Board's finding that Respondent has complied with the terms of this Settlement Agreement to the Board's satisfaction.

8. In entering this Settlement Agreement, Respondent acknowledges the following:

- a. This Settlement Agreement is subject to the approval of the Board and will have no force or effect if it is not accepted by the Board.
- b. Counsel for the State may present this Settlement Agreement to the Board *ex parte*.
- c. I have the right to be represented by counsel in this matter. I am represented by Joseph Huigens of Koley Jessen P.C., L.L.O.
- d. I understand I have an opportunity to be heard and to contest the allegations against me in a formal hearing before the Board and that, by waiving the formal hearing, I waive my right to challenge the allegations against me and all attendant rights, including the right to seek judicial review of the Board's actions.

- f. I understand this Settlement Agreement will be part of my permanent licensure file and may be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.
 - g. I am voluntarily entering into this Settlement Agreement.
 - h. Failure to comply with the provisions of this Settlement Agreement shall be grounds for further disciplinary action pursuant to Iowa Code § 272C.3(2)(a).
 - i. I understand the Board will report this Settlement Agreement to the National Practitioner Databank (“NPDB”). Such report to the NPDB will reflect the language included in this Settlement Agreement.
 - j. I understand I am responsible for all expenses incurred by me to comply with the conditions and requirements of this Settlement Agreement.
 - k. The factual circumstances alleged, by virtue of their incorporation in this Settlement Agreement, are now public and available for inspection and copying in accordance with Iowa Code chapters 22 and 272C.
9. Respondent shall submit a copy of this Settlement Agreement to all applicable licensing boards where Respondent holds a professional license (other than the Iowa Board of Behavioral Health Professionals), whether active or not, no later than **THIRTY DAYS** following the date this Settlement Agreement is approved by the Board.
10. This Settlement Agreement constitutes discipline against Respondent and is the final agency action in a contested case pursuant to Iowa Code § 17A.10.
11. This Settlement Agreement shall not preclude the Board from taking additional action against Respondent should Respondent violate laws, rules, or standards of practice administered by the Board in the future.

12. This Settlement Agreement, when fully executed, is a public record available for inspection and copying in accordance with the requirements of Iowa Code chapters 17A, 22, and 272C.

13. The Board's approval of this Settlement Agreement shall constitute a **FINAL ORDER** of the Board.

D. FINAL ORDER

WHEREFORE, the terms of this Settlement Agreement are agreed to by the Iowa Board of Behavioral Health Professionals and the Respondent.

IT IS THEREFORE ORDERED,

a. Respondent is **CITED** for unethical conduct in making suggestive, lewd, lascivious, or improper remarks or advances to a client in violation of Iowa Administrative Code rule 33.2(1)(b) and **WARNED** that future violations may result in further disciplinary action.

b. Respondent shall comply with the terms and conditions of her probation and practice monitoring described above in Section C, paragraph 7.

c. Any documents, notifications, or reports required to be submitted to the Board pursuant to this Settlement Agreement should be mailed to the Iowa Department of Inspections, Appeals and Licensing, Iowa Board of Behavioral Health Professionals Therapy, Division of Professional Licensing and Regulation, Licensing Bureau, 6200 Park Avenue, Suite 100, Des Moines, Iowa 50321, or emailed to PLPublic@idph.iowa.gov.

REMAINDER OF THIS PAGE INTENTIONALLY BLANK
SIGNATURE PAGE FOLLOWS

FOR THE RESPONDENT:

Voluntarily agreed to and accepted by Leah O'Brien on this 23 day of
June, 2025.

Leah O'Brien
By: Leah O'Brien, Respondent

FOR THE IOWA BOARD OF BEHAVIORAL HEALTH PROFESSIONALS:

Voluntarily agreed to and accepted by the **IOWA BOARD OF BEHAVIORAL HEALTH
PROFESSIONALS** 2nd day of September , 2025.

Aaron L Culley, LSW
Board Chair
Board of Behavioral Health Professionals